

DATED

17th June 2024

OLIVER MARK CRISTIAN YERBURY-HODGSON and CHLOE CHOUSMER-KERR

DECLARATION OF TRUST

55 Avon Street, Warwick, Warwickshire, CV34 4PX

STEPHEN RIMMER LLP
28 – 30 Hyde Gardens
Eastbourne
East Sussex
BN21 4PX

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THIS DECLARATION OF TRUST is made the 17th day of June 2024 B E T W E E N OLIVER MARK CRISTIAN YERBURY-HODGSON ("Oliver") and CHLOE CHOUSMER-KERR ("Chloe") (collectively "the Parties") of 55 Avon Street, Warwick, Warwickshire, CV34 4PX WHEREAS:

(1) Ownership of the Property

By a Transfer of even date herewith but executed prior to this Deed Oliver and Chloe are the legal owners of the property described in the First Schedule hereto ("the Property") and they wish to specify the proportions in which they hold the Property beneficially

(2) Mortgage

The Property is subject to a mortgage ("the Mortgage") dated the 17th day of June 2024 and made between Oliver and Chloe of the one part and the Nationwide Building Society of Mortgage Administration, NW 6047, Swindon, SN38 1NW of the other part

(3) Agreement

The Parties have agreed that they shall hold the property for themselves as beneficial tenants in common upon the following terms

NOW IT IS AGREED as follows:-

1. Beneficial Entitlement

The Parties hereto shall hold the Property upon trust for sale with power to postpone the sale and (to hold the net proceeds of sale and the net income until sale) as beneficial tenants in common in the proportions as set out in the Second Schedule below ("the Proportions")

2. Liability for Mortgage

The Parties hereby agree that they shall without prejudice to the rights and remedies of the Mortgagee be liable to pay the principal sum and interest under the Mortgage equally

3. Income from the Property

Any income or rent of any kind obtained from the Property shall be divided in the Proportions

4. Notice of Sale

4.1 If either of the Parties desire to enforce the trust for sale to which the Property is subject to or to dispose of his or her beneficial interest in the property that party ("the

Seller") shall give written notice ("Notice of Sale") to the other ("the Buyer") offering to sell the whole of the beneficial interest to the Seller in the Property to the Buyer

- 4.2 Within one month of being given Notice of Sale the Buyer shall give written notice ("Notice to Buy") to the Seller indicating a desire to purchase the beneficial interest of the Seller in the Property

5. Valuation

- 5.1 The Parties shall attempt to reach an agreement on the value of the beneficial interest of the Seller in the Property on the open market as though the Property was vacant at the date of the Notice to Buy

- 5.2 If agreement has not been reached within one month of the date of service of the Notice to Buy then the Parties shall jointly instruct an independent valuer ("the Valuer") to make a valuation of the beneficial interest for sale ("the Valuation") binding on the Parties at the joint expense of the Parties

- 5.3 If the Parties are unable to agree on the appointment of the Valuer either of the Parties may apply to the President of the Royal Institute of Chartered Surveyors for the time being to appoint the Valuer

6. Notice to Proceed

From the date when the Valuation has been communicated to the Parties ("the Valuation Date") the Buyer shall within seven days inform the Seller in writing whether he or she is prepared to proceed with the purchase of the beneficial interest in the Property at the price determined by the Valuer ("Notice to Proceed")

7. Payment of Amount of Valuation

If the Seller gives Notice to Proceed the Buyer shall have twenty one days to pay the amount of the Valuation to the Seller upon which the Seller shall execute an assignment of his or her beneficial interest in the Property free from all incumbrances created by the Seller

8. Time Limits

If either of the Parties fails to comply with the above time limits then the other shall be entitled to enforce the trust for sale without further notice

IN WITNESS whereof the Parties hereto have executed this Deed the day and year first above written

THE FIRST SCHEDULE
hereinbefore referred to
The Property

ALL THAT property known as 55 Avon Street, Warwick, Warwickshire, CV34 4PX as is
registered at H M Land Registry under Title Number WK394904

THE SECOND SCHEDULE
hereinbefore referred to
The Proportions

1. As to £50,000.00 to Oliver Mark Cristian Yerbury-Hodgson
2. As to the balance to be split equally between Oliver Mark Cristian Yerbury-Hodgson
and Chloe Chousmer-Kerr as Tenants in Common in Equal Shares

SIGNED and DELIVERED as a DEED by the said)

Oliver Mark Cristian Yerbury-Hodgson in the presence of:)

olueirgh

W Signature *[Signature]*

I Name *MICHAEL CLAYTON*

T Address *57 AVON STREET*

N *WARWICK*

E

S

S Occupation / Status *COMMUNICATIONS*

SIGNED and DELIVERED as a DEED by the said)

Chloe Chousmer-Kerr in the presence of:)



W Signature



I Name

Lauren Jane Hornsby

T Address

57 AVON STREET

N

WARWICK

E

CV34 4PX

S

S Occupation /

Status

Self-employed